

nad neglected his duty, and the demand against him for interest was consequently disallowed (*d*).

7. **Formerly the executor might have used the assets.**—Formerly it was held that an executor might employ the assets in his trade, or lend them upon security, and he should not be called upon to account for the profits or interest (*e*). And such was the case even where money which had been lent by the testator on good security was called in by the executor for the express purpose of being re-lent by himself. For the executor, it was argued, was not bound to lend the assets, and if he did so, it was at his peril, and he was answerable for losses, and if accountable for any loss, he was surely entitled to any gains (*f*). But Lord North overruled the doctrine in spite of the alleged practice of the Court for the last twenty years, and the authority of above forty precedents; and as to the argument, that, if the money should be lost, the executor would be personally responsible, his Lordship said, it was very well known that a man might insure his money at the rate of *one per cent.* (*g*).

8. **At least where he was solvent.**—A distinction was afterwards taken between a *solvent* and an *insolvent* executor; that the former, as he might suffer a loss, should take the gain, but, as an executor who was insolvent at the time of the loan could incur no risk of a loss personally, he should not be allowed to take to himself any benefit (*h*).

[*340] * 9. **And where the assets used were not specifically bequeathed.**—And Lord Hardwicke drew another distinction; that if an executor had *placed out* assets that were *specifically bequeathed*, he would be made to account for the interest, but that the Court never directed interest against an executor who made use in the way of his trade of *general* assets come to his hands (*a*).

(*d*) *Bruere v. Pemberton*, 12 Ves. 386; but see *Sutton v. Sharp*, 1 Russ. 146; *Turner v. Maule*, 3 De G. & Sm. 497; [*Evans v. Evans*, W. N. 1876, p. 205.]

(*e*) *Grosvenor v. Cartwright*, 2 Ch. Ca. 21; *Linch v. Cappy*, 2 Ch. Ca. 35; and see *Brown v. Litton*, 1 P. W. 140.

(*f*) See *Ratcliff v. Graves*, 2 C. Ca. 152.

(*g*) *Ratcliff v. Graves*, 1 Vern. 196; S. C. 2 Ch. Ca. 152.

(*h*) *Bromfield v. Wytherley*, Pr. Ch. 505; *Adams v. Gale*, 2 Atk. 106.

(*a*) *Child v. Gibson*, 2 Atk. 603.